



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

February 13, 2023

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15198
(FOURTH REVISION)

EXPIRATION DATE: 2027-01-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: Ineos Pigments USA Inc.
Glen Burnie,MD
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of residues of titanium tetrachloride contained in disassembled process equipment in non-DOT specification packaging across public roads of not more than seven tenths of a mile, from one part of a plant to another, without shipping papers, marking, labeling, and placarding. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172, Subparts C, D, E, and F in that shipping papers, marking, labeling and placarding are excepted, as provided herein.
5. BASIS: This special permit is based on the application of Ineos Pigments USA Inc., dated December 28, 2022, submitted in accordance with § 107.109.

Tracking Number: 2022125257

6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Titanium tetrachloride	8	UN1838	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING: All equipment including piping, pumping, and heat exchangers containing residues of titanium tetrachloride must be drained and purged to the extent practicable prior to the following non-specification packagings:

- (1) Equipment with flanged connections must be sealed with gaskets and bolted flanges.
- (2) Equipment with openings not fitted with flanged connections must be placed in plastic bags and sealed.

b. OPERATIONAL CONTROLS:

- (1) This special permit authorizes the transport of process equipment such as piping, pumps, and heat exchanges containing residues of titanium tetrachloride between the two facilities owned by Millennium Inorganic Chemicals, Inc. across a public road (Middle Road in Ashtabula, Ohio 44004), a distance of less than a mile.
- (2) The packages must be prepared, packed, loaded, unloaded and transported under the supervision of Millennium Inorganic Chemicals, Inc.
- (3) An escort vehicle with amber flashing lights must accompany each transport vehicle.
- (4) Not more than one dedicated transport vehicle will be on the public road at any time.
- (5) Plant emergency response personnel must be on duty during transport to mitigate a spill, if necessary.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor Vehicle.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) — "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR § 171.15 - Immediate notice of certain hazardous materials incidents, and

171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "W. Schoonover", is written over a faint circular official stamp.

for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Hwang/Casey Chambers